

HOUSE No. 2462

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to permit the scattering of unclaimed cremated remains at sea.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/7/2025</i>

HOUSE No. 2462

By Representative Kearney of Scituate, a petition (accompanied by bill, House, No. 2462) of Patrick Joseph Kearney for legislation to permit the scattering of unclaimed cremated remains at sea. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2206 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to permit the scattering of unclaimed cremated remains at sea.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 43M of chapter 114 of the General Laws, as appearing in the 2020 Official
2 Edition, is hereby amended by striking out, in line 15, the following words:-

3 "Notwithstanding any general or special law to the contrary, a funeral establishment in
4 possession of the cremated remains of a human body which is not claimed by a next-of-kin or
5 duly authorized representative within 12 months after the date of cremation may have the
6 remains interred or placed in a common grave, niche, or crypt in a cemetery, or scattered in an
7 area of the cemetery designated for that purpose;"

8 and, inserting in place thereof the following words:

9 "Notwithstanding any general or special law to the contrary, a funeral establishment in
10 possession of the cremated remains of a human body which is not claimed by a next-of-kin or
11 duly authorized representative within 12 months after the date of cremation may have the
12 remains interred or placed in a common grave, niche, or crypt in a cemetery, scattered in an area
13 of the cemetery designated for that purpose, or scattered at sea;"